0208 5799511
info@delamaracademy.co.uk

ENROLMENT FORM

This Enrolment Form must be completed in full by all applicants and returned to Delamar Academy at the address below. If you have any problems or difficulties while completing this form please contact us for assistance.

PLEASE TYPE IF POSSIBLE OR USE BOLD BLACK CAPITALS AND ENCLOSE THE FOLLOWING:

1. **The deposit (see PART F for details)**
2. **A recent passport sized photograph X 2**
3. **A photocopy of the identity page of your passport**
4. **Proof of UK and/or overseas address, such as a bank statement or utility bill**
5. **Confirmation of student visa (where necessary)**
6. ***(1-YEAR HE CERTIFICATE APPLICANTS ONLY)* If you are under 21 years of age, proof of 5 GCSE's and 1 A-Level or equivalent**

SECTION ONE

PART A – PERSONAL DETAILS



Title: AROOBA SHAHID

First Name(s): AROOBA

Surname: SHAHID AHMED

Address in UK:

Postcode: KARACHI, PAKISTAN 75290

Email Address: aroobashahid47@gmail.com

☑ Please tick if you consent to your email address to be included in group emails (for work experience etc.) or forwarded to the other students before the course begins (for arranging accommodation etc.).

☐ Please tick if you consent to Delamar Academy taking photographs/videos of yourself and using said images both internally and externally to promote the Academy.

Overseas Address (if applicable): HOUSE NO B158 BLOCK 3 GULISTAN E JOHAR KARACHI

Age when course commences (see Part B for details): I am 24

Date of Birth (Day/Month/Year): 12 .01.2000 Gender: FEMALE

PLEASE NOTE YOU MUST BE AT LEAST 18 YEARS OF AGE AT THE START DATE OF YOUR COURSE

Home Telephone Number:

Mobile Telephone Number: +923237813802

Work Telephone Number: +923237813802

Fax Number:

National Insurance Number (UK students only):

Occupation: BEAUTICIAN

Relevant Previous Experience: I have been running my own salon for the past 3 years

Other examinations / qualifications achieved: HDSE FROM APTECT INSTITUTE

How did you hear about Delamar Academy? I saw your video on Instagram.

Emergency contact name: +923113857626

Relationship to you: MOTHER Telephone:

PART B

The following information is required so we can help you as far as reasonably possible, this information is treated with the utmost confidence and only shared with your consent. (Please note this will not affect your acceptance on any course): Please give details of any allergies, disabilities, medical conditions, learning difficulties or special requirements you may have

No, I'm perfectly normal.

Are you on long-term medication? YES ☐ NO ☑

If 'YES' please state your condition and medication: _____

Will you be bringing any medication on site? No.

If yes, please provide details _____

PLEASE TICK THE BOX IF YOU SUFFER FROM ANY OF THE FOLLOWING CONDITIONS:

Heart disorder	☐	Hearing Impairment	☐	Mental Ill Health	☐	Migraines	☐
Back Problems	☐	Diabetes	☐	Emotional/Behavioural	☐	Asthma	☐
Dyslexia	☐	Allergies	☐	Anxiety Attacks Visual	☐	Epilepsy	☐
Innumeracy	☐	O.C.D	☐	impairment Dyspraxia	☐	Phobias	☐
Nervous disorder	☐	Disability Effecting Mobility	☐	Other Physical Disability	☐		
R.S.I	☐	Skin Conditions	☐		☐		

If you suffer from a condition not listed above please state below (please also provide specific details of any particular condition(s) selected above e.g. Allergies: Nuts)

_____

_____

If you would like to disclose any details privately please arrange a meeting with Leda.

Would you like the tutors to be aware of your condition? YES ☐ NO ☐

Do you give permission for us to discuss this with your parents and/ or next of kin?

YES ☐ NO ☐

We reserve the right to tell the tutors anything that we think they need to know, but if you have any concerns please discuss them with our Director, Leda Shawyer.

PART C

Are you pregnant? YES ☐ NO ☑

Please note that some of the products/substances used in our courses are contra-indicated for use by pregnant women. Consequently, pregnant women may not attend any classes where such products are being used. No refunds will be given to students missing sections of the course due to pregnancy. Because of this, it is mandatory that you inform us immediately as soon as you are aware that you are pregnant, as we may be able to offer alternative courses which are safe to attend whilst pregnant.

PART D – CAREEER GOALS AND COURSES

CAREER GOALS

(Please tick any that apply to you) Fashion Industry ☐ Film/TV ☑

Prosthetics ☐ Theatre ☐

Do you have a driving licence? Yes ☑ N o ☐

Do you have access to a car (for work experience)? Yes ☑ No ☐

PART E

First Language Spoken: URDU

Other Language(s) Spoken: ENGLISH

Ethnic Origin

In: Please tick the box most appropriate to you

White, UK heritage	☐	White European	☐	White other	☐
Black Caribbean	☐	Black African	☐	Black Other	☐
Indian	☐	Pakistani	☑	Bangladeshi	☐
Chinese	☐	Japanese	☐	Other	☐
Prefer not to say	☐				

Are you a UK citizen? NO

If 'NO', what is your Country of Residence PAKISTAN

What is your Nationality? PAKISTANI

Please state your ability with the English language (i.e. "Basic" "Intermediate" "Advanced" or "Fluent") (Please include any qualifications)

Reading: ADVANCED Writing: ADVANCED

Listening: ADVANCED Speaking: ADVANCED

Please note that, in accordance with our Terms and Conditions, you must be able to speak, read and write English in order to attend Delamar Academy. Where English is not your first language, students will be assessed on their language skills during their interview, this should be equivalent to IELTS level 6.

PART F – COURSE CHOICE, DEPOSIT AND PAYMENT I wish to enrol at the Delamar Academy on the following course:
(Please tick where appropriate)

COURSES		**Course Fee** (inc VAT if applicable)
Full (non-short) courses include a make-up kit		
10 MONTH PROFESSIONAL MAKE-UP DESIGN 22 WEEK	☐	**£21,750**
ADVANCED COMPLETE MAKE-UP ARTIST 16 WEEK	☐	**£16,550**
COMPLETE MAKE-UP ARTIST 15 WEEK COMPLETE MAKE-UP ARTIST	☐	**£13,250**
	☐	**£12,750**

Please specify which weeks you want to take out of the 16 week course (such as Barbering if you are already a hairdresser)

SHORT COURSES – 1 week £1,050 per week

The make-up kit can be bought - where necessary it can be lent to the student

Basic Make-up	☐	Fashion Make-up	☑
Period Make-up	☐	Basic Hair	☐
Facial Hair	☐	Airbrush and Body Art	☐
Period Wigs	☐	Period Hair and Make-up	☐
Casualty Make-up	☐	Character Make-up	☐
Barbering	☐	Setting week	☐
Afro Hair	☐	Contemporary Hair	☐

SHORT COURSES – 2 weeks

The make-up kit can be bought - where necessary it can be lent to the student

Casualty and character	☐	**£2,050**
Prosthetics, Bald Caps and Application	☐	**£2,050**

ADVANCED COURSES – 4-7 weeks

Advanced Beauty and Fashion (6 weeks)	☐	**£6,250**
Advanced Prosthetics (6 weeks)	☐	**£6,250**
Advanced Hair (6 weeks)	☐	**£6,250**
Advanced Fashion (4 weeks)	☐	**£4,250**

COURSE COMMENCEMENT DATE: JANUARY 2025

Payment Method: Credit card ☐ Bank Transfer ☑

I enclose a Deposit / Full Course Fee (delete as necessary) for the sum of: £300/1,050

• Standard Deposit is 25% of the total course fee.

- A deposit is required to confirm and reserve your specific course. Deposits only apply to bookings
- more that 30 days in advance of the course commencement date. Any bookings received less than 30 days in advance of the course must be paid in full.

PLEASE NOTE THAT DEPOSITS ARE REFUNDED STRICTLY IN ACCORDANCE WITH DELAMAR ACADEMY'S TERMS AND CONDITIONS IN SECTION TWO

Bank transfers are payable to: **Delamar Academy Ltd**

Bank : Santander, Bridle Road, Bootle, L30 4ZY,
Sort code: 09-01-27, Account number: 94632604,
BIC/ SWIFT: ABBYGB2LXXX, IBAN: GB30 ABBY 0901
2794 6326 04.
Please include the name of student as the reference in any bank transfers

WE ARE UNABLE TO PROCESS PAYMENTS FROM INTERNATIONAL CURRENCY CARDS.

For late payments, please call us on +44 (0)208 579 9511 to discuss payment.

THE FOLLOWING ADDITIONAL INFORMATION IS REQUIRED FOR ENROLMENT WITH THE DELAMAR ACADEMY

PART G - EQUAL OPPORTUNITIES

Delamar Academy is committed to equal opportunities and will treat all applicants / students / staff the same way regardless of gender, marital status, sexual orientation, race, nationality, ethnic origin, religion, colour or disability.

We will not tolerate any discrimination on any of these grounds. Every student is responsible for his / her own actions and are required to behave in an acceptable manner in accordance with this policy.

Any concerns in this area should be addressed through our Directors, Leda Shawyer and Gideon Shawyer.

CHANGES TO YOUR PERSONAL INFORMATION

It is essential that you inform the administration department of any changes to the information you have provided in this form. Failure to do so may invalidate any insurance cover for you in the event of an accident. Failure to disclose any information at this stage, which later affects your course will invalidate your contract with Delamar Academy.

PLEASE READ DELAMAR ACADEMY'S TERMS AND CONDITIONS BEFORE SIGING THE DECLARATION BELOW DECLARATION: I have read and understood Delamar Academy's Terms and Conditions set out below which together with this Enrolment Form, form the contract between Delamar Academy and me on being accepted on a course by Delamar Academy. I confirm my acceptance in full of Delamar Academy's Terms and Conditions and in particular agree to clauses 2.6 and 2.11 of the Terms and Conditions. I have retained a copy of the Terms and Conditions for my records, together with a copy of this Enrolment Form.

Print name: AROOBA SHAHID

Signature:

Date: 17 OCT 2024

(Please Note: You must be 18 years old or over at the start of your course, although you may enrol in advance)

Please send the completed form to: Delamar Academy, 40 The Mall, Ealing, London W5 3TJ
Tel: 0208 579 9511
Email: admissions@delamaracademy.co.uk
Website: www.delamaracademy.co.uk

SECTION TWO: TERMS AND CONDITIONS

Background

The Enrolment Form, together with these Terms and Conditions, comprise the entire Agreement/Contract between Delamar Academy Limited (hereinafter "**WE**" or "**US**" or "**OUR**" or "**OURSELVES**") and the Student (hereinafter "**YOU**" or "**YOUR**" or "**YOURSELF**").

YOUR use of OUR website, YOUR booking or purchase of a course and/or related products and services signifies YOUR agreement to these Terms and Conditions. They constitute a contract between YOU and US. If YOU are a consumer YOUR statutory rights are not affected by this Agreement/Contract.

OUR registered office is at 27 Mortimer Street, London, England, W1T 3BL. OUR company number is 05800721. YOU can contact US using the contact details provided on OUR website at www.delamaracademy.co.uk. Terms used in this Section of the Agreement/Contract shall have the same meaning as referred to in the Enrolment Form.

1. **Entry Requirements**

1.1 The minimum age for entry is 18 years on the course commencement date.

1.2 For students wishing to enrol on the One Year Cert HE Professional Make-Up Design course, YOU are required to have passed 1 'A' Level and 5 'GCSEs' at "C" grade or above, one of these subjects being English or a recognised equivalent.

1.3 For all other courses, no previous experience or formal qualifications are required. However, all of OUR courses are conducted in English and YOU must therefore be able to satisfy US that YOU can speak, read and write English to a level that will enable YOU to participate in these courses.

1.4 If YOU are a non-native speaker of English wishing to study one of OUR courses, YOU may be asked to take an entry test to determine YOUR level of English. Please see clause 9 below in this regard.

1.5 YOU are required to produce with YOUR Application Form all documentary evidence proving that YOU meet the requirements set out above. Failure to provide such documentary evident will result in YOUR application being delayed or rejected. OUR decisions with regard to applications are final.

2. **Course Booking and Payment Terms**

2.1 These Terms and Conditions apply to the purchase, booking or use of any course or related products or services provided by US.

2.2 Information about courses and related products and services (including price) is subject to reasonable change without notice. The content of OUR courses is subject to reasonable change without notice.

2.3 YOU acknowledge that on booking a place on a course WE are entitled to do all that WE deem necessary to plan for YOUR participation on the course. YOU also acknowledge that this may extend to acquiring additional equipment, securing and restructuring the delivery of the course to accommodate YOUR placement and denying a place on the course to another student if the course is over subscribed or if YOU decide to cancel. Accordingly YOU agree that the Cancellations and Transfers policies included in these Terms and Conditions are both fair and reasonable and as far as YOU are aware reflect the circumstances at the time of booking.

2.4 For all OUR courses, a 25% deposit must be paid at the time of booking to secure YOUR place. **Subject to clauses 2.7 and 2.12, all deposits paid to secure a place on any course are non-refundable and will be credited against the course fee of YOUR choice or, subject to these Terms and Conditions and course availability, will be re-applied to a different course of YOUR choice. Subject to clause 5 (Cancellations and Transfers), if YOU cancel YOUR enrolment less than 30 days prior to the commencement date, no monies (whether deposits or other related payments) will be refunded.**

2.5 If YOU are an overseas student requiring a visa to study in the UK and YOUR application, made in good faith, is unsuccessful, WE will refund the amount of the course fee paid, less the sum paid in respect of the deposit for the course and a £30.00 administrative charge upon presentation of the official documentation from YOUR local embassy or consulate confirming YOUR unsuccessful visa application and a copy of YOUR original visa application at least 30 days prior to the course commencement date. **Exceptional circumstances may be considered on a case by case basis when WE may return your deposit but this shall and be subject to OUR sole discretion. OUR decision, however when exercised, will be final.** If WE do not receive YOUR official documentation 29 days or less before the course commencement date then YOU are liable to pay US the full amount of the course fee, less the sum paid (if any) in respect of the deposit.

2.8 The balance of the full course fee for YOUR course should be paid to US no less than 30 days prior to YOUR course commencement date. However, where YOU have chosen a course commencing in September, the full course fee must be paid to US on or before the 30th June in the same year.

2.9 Payment is deemed to have taken place when WE have received clear funds.

2.10 All course fees quoted attract VAT (UK government tax) at the current rate, unless stated otherwise. WE must receive the full course fee without deduction. Any overseas/UK bank charges will be automatically added to the final balance payable. Educational courses are not exempt from VAT nor can VAT be claimed back by overseas students.

2.11 Subject to clause 5 (Cancellations and Transfers), **all course fees paid including the deposit are non refundable. Exceptional circumstances may however be considered on a case-by-case basis when WE may return YOUR course fee, but this shall be subject to OUR sole discretion. However, OUR decision, when exercised, will be final.**

2.12 WE will try to ensure that YOU receive a place on a course for which YOU have booked and paid the appropriate fee in full. However WE cannot guarantee YOUR place on any course and in the unlikely event that WE are unable to provide YOU with a place on a course for which YOU have paid a fee WE will give YOU the option of a refund of the course fee paid to date including the deposit and any other related payments, or a place on another course or a place on a future running of the course as far as reasonably possible.

2.13 If there are places available for a particular course WE will accept bookings right up until the course commencement date. For Applications made within 5 working days of the course commencement date WE cannot guarantee that YOUR booking confirmation will reach YOU by post prior to the course commencing. If YOU make a late application it is OUR policy to inform YOU whether YOU have been accepted on the course by telephone or email. If YOU have not received a response from US within 24 hours of YOUR late application it is YOUR responsibility to contact US by telephone on +44 (0)208 579 9511 to check the status of YOUR application.

2.14 YOU will not be accepted on the course commencement date unless YOUR course fee has been paid in full.

3. **Payment**

3.1 Course fees can be paid by cheque, banker's draft or bank transfer and can be made via post, YOUR bank or in person. All cheques (including foreign cheques) should be made payable to "**Delamar Academy of Make up**". If YOU are a non UK resident and wish to pay by banker's draft, bank transfer or a payment, which is sent for collection, please add £30.00 to YOUR fee for the additional bank charges, which will be incurred by US.

3.2 Please note that payment by cheque will not be accepted two weeks prior to YOUR course commencement date. Banker's draft and bank transfers will be accepted up to 2 working days before YOUR course commencement date. WE can only guarantee YOU a place on a course if payment has been received and cleared in full. For late payments, please ring US on +44 (0)208 579 9511 to discuss payment.

3.3 If YOUR Company wishes to be invoiced for the course YOU are attending, please have YOUR Company write to US on their headed paper confirming that they will be responsible for YOUR course fee and any other liabilities/expenses incurred by YOU during the duration of YOUR course. YOUR full place cannot be guaranteed until payment is received.

4. **Attendance**

4.1 YOU are required to attend on the first day of YOUR course at the time stated on YOUR timetable for the purpose of registration. Subject to clauses 4.6 to 4.9 below, failure to attend the first day of YOUR course may necessitate US in incurring additional administrative time and costs in YOUR late registration. YOU may be held responsible for such material costs incurred by US as a result of failing to attend on the first day for the purposes of registration.

4.2 Subject to clauses 4.6 to 4.9 below, if YOU fail to attend YOUR confirmed course for a material period of time which will necessitate US in expending significant time and/or cost for extra tuition for YOU to bring YOU up to date, YOU will not be automatically entitled to any extra tuition or transferral to another course/class but WE may exercise our discretion to offer YOU extra tuition at YOUR cost. **Exceptional circumstances may however be considered on a case-by-case basis when WE may provide extra tuition free of charge to YOU but this shall be subject to OUR sole discretion. OUR decision, when exercised, will be final.**

4.3 **If YOU fail to attend YOUR confirmed course or complete YOUR course for any reason, (for example, but not limited to personal problems, general conduct, illness, change of mind, personal relocation, circumstances changes and failure to obtain a**

visa etc.) YOU will not be entitled to any refund of the course fee, the deposit or other related payments paid to US, or extra tuition or transferral to another course/class. WE may consider any exceptional circumstances. However any entitlement to a refund or transferral to another course/class will be at OUR sole discretion.

4.4 For all courses a minimum attendance by YOU of 90% is required. Failure to meet this requirement will preclude YOU from obtaining the qualification for the course. Assessments are carried out throughout the course and attendance under 90% in the assessed area will result in failing to complete the assessment and obtaining the qualification for the course. Subject to these Terms and Conditions, YOU will not be entitled to any refund of the course fee, the deposit or any related payments paid to US, or offered extra tuition or a transfer to another course/class in the event that YOU fail to attend your course or complete the course assessments. Exceptional circumstances will be dealt with at OUR discretion. **OUR decision, when exercised, will be final.**

4.5 Classes will commence promptly at the published times irrespective of whether all students including YOU are present. Classes will not be delayed to wait for latecomers and WE are under no obligation to repeat missed work or classes. Latecomers may be requested to wait until a suitable break in teaching before entering a class. Class hours may be varied at OUR sole discretion without prior notice.

4.6 It is YOUR responsibility to ensure that YOU sign the course register at each session of the course to confirm YOUR attendance.

4.7 Absence from YOUR chosen course will only be excused for one of the following reasons: a death in the family, the birth of an immediate family member and illness (please see clause 4.8 below).

4.8 If due to illness YOU are unable to attend YOUR course on any given day, YOU must report this to US by 9:00am on the day in question or arrange for a relative and/or next of kin to do so. In the event that YOU are absent from YOUR course for more than 7 consecutive days, WE will require a note from YOUR doctor confirming that YOU were unfit to attend YOUR course for the period in question. Failure to provide a doctors note may result in YOU failing to obtain the and/or qualification for the course immediate expulsion. OUR decision is final. **YOU will not be entitled to any refund of the course fee, the deposit or related payments paid to US, or extra tuition or the option to transfer to another course/class.**

4.9 Any infectious diseases must be reported to the Academy administration immediately. Always seek the advice of a doctor or pharmacist if you believe your symptoms to be contagious. For the safety of other students you must not engage in any practical class work for 48 hours after starting treatment.

4.10 Any planned absences must be disclosed to US at least 7 days in advance of the first day of the planned absence. Time off for such absences (for example, but not limited to religious holidays, booked holidays, planned weddings and medical appointments) must be approved by US in writing prior to YOUR planned absence. WE highly recommend that all absences be avoided where possible.

4.11 Some of the products/substances used by US in OUR courses are contra-indicated for use by pregnant women. YOU must inform US immediately as soon as YOU are aware that YOU are pregnant. **If YOU are pregnant, YOU will be unable to attend any classes where such products/substances are in use and may result in YOU failing to obtain the qualification for the course. YOU will not be entitled to any refund of the course fee, the deposit or related payments paid to US, or extra tuition or the option to transfer to another course/class.** In the event that you fail to disclose to US that YOU are pregnant WE cannot be held liable in the event that YOU suffer any adverse effects from any product/substance used whilst attending OUR courses.

4.12 Unless otherwise agreed to in writing by US, any unexcused absence for longer than 7 consecutive days whether as a result of illness or otherwise, will be subject to clauses 4.1 to 4.4 above. Unexcused absence and lateness are not allowed and will be dealt with as follows:

4.11.1 three unexcused lateness's will be deemed an unexcused absence;

4.11.2 one unexcused absence will result in a formal letter of warning;

4.11.3 two unexcused absences will result in a meeting with OUR Director; and

4.11.4 subject to OUR discretion, three unexcused absences may result in failure to obtain the qualification for the course and / or expulsion from the course.

5 Cancellations and Transfers

5.1 **Cancellations by US** - WE reserve the right to cancel any course at any time up to and including the course commencement date. If WE cancel a course, YOU will be notified as quickly as possible. YOU will be given the opportunity to transfer to another course or reserve a place on a future running of the course. If the rescheduled dates are not convenient to you, YOUR course fee or the deposit (if the full course fee has not been paid) will be refunded to YOU within 28 days under normal conditions. WE shall not be liable for any other consequential loss in these circumstances.

5.2 **Cancellations by YOU**- Cancellations and transfers (both subject to a administrative charge) are permitted, as long as YOU provide not less than 30 days' notice in writing before the course commencement date. If YOU fail to provide the required notice, clause 5.3 will apply. YOU may

5.3 cancel YOUR place on a course and obtain a refund of any fees paid, less the sum paid in respect of the deposit for the course subject to receipt of written notice of the cancellation by US not less than 30 days before the course commencement date. If YOU cancel your place 29 days or less before the course commencement date then YOU are liable to pay US the full amount of the course fee, less the sum paid (if any) in respect of the deposit.

5.4 All cancellations, withdrawals and requests for transfers for any reason whatsoever from a course must be received by US in writing.

5.5 any YOU acknowledge that given circumstances at the time of booking, the Cancellations and Transfers policy in this clause is fair and reasonable and reflects, inter alia, OUR need to properly plan to accommodate YOU on the course. Further YOU irrevocably confirm that YOU consider this to be an appropriate assessment of OUR loss, including for the avoidance of doubt loss of revenue and loss of profit.

5.6 WE will be closed on all UK public holidays and there will be no courses/classes on these days.

6. **Force Majeure**

In the occurrence of an incident of Force Majeure which leads to the failure or inability of either party to discharge any of the material obligations hereunder (provided the Force Majeure continues for six weeks or more), either party may terminate this Agreement forthwith by giving written notice to the other party.

7. Class Postponement

7.1 In the event of staff illness, WE will attempt to find a substitute tutor. If this is not possible, the class will be postponed, and every effort will be made to contact YOU. The class will be rescheduled to suit the majority of participants. Alternatively, the missed hours may be added to the remaining course classes.

7.2 Occasionally, courses may have to be postponed at very short notice due to unforeseen incidents/events. In such circumstances the procedure set out in clause 7.1 above will be followed.

8. Conduct

8.1 YOU are expected to conduct YOURSELF in a professional and appropriate manner at all times and to recognise that YOUR fellow students will also require support and assistance. WE reserve the right to expel YOU from YOUR course if YOUR behaviour in OUR judgement falls below this standard. Furthermore WE reserve the right to legal investigate and take appropriate action if YOU violate this provision, such behaviour to include, but not be limited to the following actions: -

8.1.1 possessing, selling, consuming and being under the influence of alcohol, illegal substances and any other substance that may alter YOUR behaviour from that which is deemed acceptable by US;

8.1.2 possessing an instrument that could be interpreted by US as a weapon other than what is provided to YOU by US on the course;

8.1.3 any other activities/actions which are offensive and/or pose a risk to OUR staff and other students;

8.1.4 disrespectful or abusive behaviour to US, OUR staff or other students; and

8.1.5 any other illegal act.

8.2 YOU are to abide by the Health and Safety guidelines governing US, as set out in the notices posted throughout OUR premises.

8.3 YOU must wear appropriate attire, suitable for YOUR course requirements at all times.

8.4 In the event that YOU are expelled from YOUR course as a result of YOUR conduct YOU will not be entitled to any refund of the course fee, the deposit or any other related payments paid to US.

9. Visa Requirements / Overseas Students

9.1 All classes are taught in English. If YOUR first language is not English YOU will need to be able to satisfy US that YOU can speak, read and write English at a level that will enable

YOU to participate in group discussions and presentations.

9.2 If YOU require a Visa to join US, YOU must ensure that YOU have the means to obtain this before YOU sign this Agreement. YOU will need to obtain a Student Visa and give this to the Visa section at a UK Mission overseas (British/UK Embassy, High Commission or Consulate). YOU will also have to ensure that you provide the necessary documentation as required for a student visa under Part 3 of the Immigration Rules and be able to fulfil the criteria set out under those rules. Below is a list of some examples of the criteria YOU will need to fulfil under the immigration rules in conjunction with OUR requirements as listed at clause 9.1 above:

(a) YOU have been accepted onto OUR course.

For this WE will provide a letter that YOU can present to the Entry Clearance Officer upon receiving this Agreement signed and dated by YOU along with a 25% deposit of the course fee for the course you wish to enrol for;

(b) YOU intend to leave the UK at the end of YOUR studies;

(c) YOU do not take up any employment unless it is part-time and it has been authorised; and

(d) YOU are able to meet OUR expenses and YOUR living expenses without taking employment or relying on public funds.

9.3 YOU must provide US with YOUR UK address, telephone, fax and email details not less than two-weeks prior to YOUR course commencement date in case WE need to advise YOU of any changes. WE do not make any funds available for accommodation or travel costs associated with OUR courses for any reason whatsoever.

9.4 All overseas students are required to take an entry test to determine their level of English. Any student that fails OUR entry test will be unable to attend OUR courses.

9.5 All students making arrangements for payments of the course fee through an overseas bank must ensure that either the course fee, or proof of payment from their bank, shall accompany their Enrolment Form and that the bank making the payment(s) quotes the full name of the student on the details of payment.

9.6 WE reserve the right to decline any applications which fail to meet the above criteria.

10. General

10.1 WE do not take any responsibility for any loss or damage to YOUR belongings brought onto OUR premises. This is done entirely at YOUR risk.

10.2 It is YOUR responsibility, having referred to the relevant sources of course information, to ensure that the course YOU have chosen is suitable for YOUR requirements. WE therefore highly recommend that YOU speak with US, consult OUR prospectus or an independent career advice service prior to application so that YOU can be certain that YOUR needs will be met. WE are pleased to offer advice but will accept no liability in the event that the content of OUR course does not meet YOUR individual expectations.

10.3 OUR acceptance of payment and YOUR attendance does not guarantee a Qualification, Diploma or Certificate of Higher Education Achievement is dependent upon your successful completion of each course. OUR decision is final in all cases.

10.4 Any materials, work books or handouts supplied to YOU by US, may not be sold, loaned, rented, given away, distributed or exploited in any manner and the copying of any material is strictly prohibited.

10.5 Due to possible copyright infringement YOU are not permitted to bring in or use any video equipment. Audio recording equipment may be permitted by specific arrangement.

10.6 By agreeing to these Terms and Conditions, YOU guarantee that YOU are enrolling with US to increase YOUR knowledge and skill and are not an employee/agent for a competing business.

10.7 WE reserve the right to alter the course venue at any time.

10.8 WE reserve the right to decline applications at OUR sole discretion.

10.9 This Agreement/Contract shall not confer a benefit on any third party and the provisions of the Contracts (Rights of Third Parties) Act 1999 shall not apply to this Agreement/Contract.

10.10 If YOU are employed or sponsored for the purposes of attending OUR course and YOUR employer or sponsor is providing YOUR course fee, it is OUR policy to guarantee YOUR employer that WE will not openly or directly solicit YOU for the purposes of employment while YOU are attending OUR Academy.

11. Equal Opportunities

10.1 WE support the development of individuals who may be physically challenged by the demands of certain courses which WE find is best accommodated by early notification of potential difficulties. WE will always try

and take reasonable and justifiable steps to accommodate the difficulties in question, taking into account the student's difficulties, practical capability, impact and potential disruption, cost implications and other legal considerations. However the very nature of the course may make course accessibility difficult for students with particular types of disability. Where this occurs WE will endeavour to discuss with you in advance whether YOU wish to attend certain aspects of a course where such challenges are reasonably and justifiably surmountable or agree to an alternative solution which is satisfactory to both parties.

10.2 WE are committed to equal opportunities and will treat all applicants / students / staff the same way regardless of gender, marital status, sexual orientation, race nationality, ethnic origin, religion, colour or disability.

10.3 WE will not tolerate any discrimination on any of these grounds. YOU are responsible for YOUR own actions and are required to behave in an acceptable manner in accordance with this policy.

10.4 Any concerns in this area should be addressed through OUR Director, Leda Shawyer.

12. Invalidity

If any court or any competent authority to be void or unenforceable in whole or in part holds any provision of this Agreement/Contract the remaining provisions of this Agreement/Contract shall continue to be valid and effective.

13. Governing Law

These Terms and Conditions are governed by and shall be construed in accordance with English Law and are subject to the exclusive jurisdiction of the English Courts.

14. Mediation

By signing the Enrolment Form, YOU hereby agree that all potential claims against US by YOU must first be subject to formal mediation before being pursued in the English Courts.

15. Entire Agreement

15.1 These Terms and Conditions, together with OUR Enrolment Form, comprise the entire Agreement/Contract between You and US in connection with YOUR booking, purchase or use of OUR courses and related products and services and can only be varied if agreed to by OUR Director in writing.

15.2 You agree that any other communication (whether direct or indirect) YOU may have had with US, did not affect YOUR decision to book a place on and consequently attend a course. Any failure by US to exercise or enforce any right or provision of these Terms and Conditions shall not constitute a waiver of such right or provision. If any provision of these Terms and Conditions is found by a court of competent jurisdiction to be invalid, the parties nevertheless agree that the court should endeavour to give effect to the parties' intentions as reflected in the provision and that the other provisions remain in full force and effect.